

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

CHRISTON HOLDEN,

Plaintiff,

-against-

SUMMONS

Index No.

Date Index No. Purchased
Plaintiff Designates Bronx
County as the Place of Trial
Pursuant to CPLR 509
Jury Trial Demanded

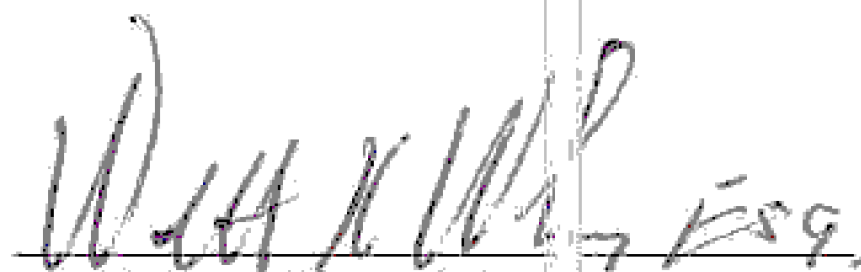
CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. SARA SALTZMANIZON, TAX REGISTRATION NO. 971660,
IN HER INDIVIDUAL CAPACITY, P.O. KEY MATIA CASTILLO,
TAX REGISTRATION NO. 968620, IN HIS INDIVIDUAL CAPACITY,
AND JOHN DOES 1-3, IN THEIR INDIVIDUAL CAPACITY AS NEW YORK CITY
POLICE OFFICERS WHOSE NAMES ARE CURRENTLY UNKNOWN.

Defendants.

X

You are hereby summoned to answer the Complaint in this action and to serve a copy of your answer or if the Complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: October 12, 2022
Bronx, New York

By 
Welton K. Wisham, Esq.
The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
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Defendants Address:

The City of New York
100 Church St.
New York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

CHRISTON HOLDEN

Plaintiff,

- against -

X

**Index No.
ECF
COMPLAINT**

**Plaintiff Designates Bronx
County as the Place of Trial.
Jury Trial Demanded**

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. SARA SALTZMANIZON, TAX REGISTRATION NO. 971660,
IN HER INDIVIDUAL CAPACITY, P.O. KEY MATIA CASTILLO,
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POLICE OFFICERS WHOSE NAMES ARE CURRENTLY UNKNOWN.

Defendants.

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Plaintiff, Christon Holden, by his attorney, Welton K. Wisham of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, officers Sara Saltzmanizon, Key Matia Castillo and John Does 1 through 3, whose names are currently unknown to the Plaintiff.. The Defendant police officers are believed to be assigned to the 40th precinct in the Bronx, New York.

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the false arrest, false imprisonment, unreasonable and excessive use of force against Plaintiff Holden on December 31, 2021, by police officers Sara Saltzmanizon, Key Matia Castillo and John Does 1 -3, who viciously and maliciously attacked Mr. Holden without justification and without provocation and caused Plaintiff to suffer serious physical and emotional injuries.

2. The underlying officers charged Mr. Holden with disorderly conduct in a blatant attempt to cover up their malicious attack against Plaintiff.

3. All charges against Mr. Holden were favorably dismissed against the Plaintiff by the Hon. Seth Steed, on January 19, 2022, who dismissed the charges which were **legally insufficient**.

4. That on December 31, 2021, Mr. Holden was held against his will by several police officers inside a lobby of an apartment building on 143rd St, Bronx, New York as Plaintiff was getting off an elevator.

5. That as soon as the officers saw Mr. Holden, the officers approached the Plaintiff and immediately surrounded Plaintiff and stopped Plaintiff from exiting the building without cause or justification.

6. The officers without reason, threw Mr. Holden on the ground and began to assault and batter the Plaintiff for no apparent reason or legal justification.

7. One of the officers jumped on Mr. Holden's back and began to pulled Plaintiff's legs apart cause great pain and agony to the Plaintiff.

8. Mr. Holden was handcuffed and taken to the 40th police precinct where he was held in custody for approximately seventeen (17) hours, falsely charged with disorderly conduct and released.

9. The Summons failed to identify the arresting officer who charged Mr. Holden with disorderly conduct in violation of Penal Law Section 240.20 (1). All charges against Mr. Holden were subsequently dismissed.

10. Christon Holden was unlawfully subjected to inhumane treatment and was deprived of his Constitutional rights under the Constitution of the United States and the Constitution of the

State of New York to be free from unlawful imprisonment, assault , battery, deprivation of liberty, and from excessive and unreasonable use of force.

JURISDICTION AND VENUE

11. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff.

12. This action arises under the Fourth Amendment and Fourteenth Amendment to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and New York State Law.

13. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action pursuant to 42 U. S. Code Section, 1983, and 42 U.S.C. Section 1988.

14. Venue is proper in this Court pursuant to CPLR Section 509. Plaintiff selects Bronx County as the place for trial by jury because the events giving rise to the causes of action complained of occurred in Bronx County.

PARTIES

15. Plaintiff, Christon Holden is an African American male, who at all relevant times was a resident of the State of New York and a citizen of the United States.

16. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

17. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendant Police officers as well as all other New York City Police Department personnel.

18. The City of New York is responsible for enforcing the rules of the New York City Police Department and for ensuring that the Defendants police officers and all other New York City Police officers and personnel obey the laws of the State of New York and the laws of the Constitution of the United States.

19. At all times relevant Defendant Police officers Sara Saltzmanizog, Key Matia Castillo and John Does 1 through 3, whose names are currently unknown to the Plaintiff. Are believed to be assigned to the 40th police precinct and were and still are members of the New York City Police Department who acted in the capacity of agent, servant and employee of the City of New York, and within the scope of their employment under color of state law.

JURY TRIAL DEMAND

20. Plaintiff demands trial by jury.

NOTICE OF CLAIM

21. Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim on or about March 14, 2022, well within ninety days of the incident alleged herein against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

22. On March 25, 2022, the Comptroller of the City of New York acknowledge receipt of Mr. Holden's Notice of Claim by assigning claim number 2022PI008189.

23. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

24. That on September 28, 2022, Mr. Holden appeared virtually for the 90-Hearing and gave testimony pertaining to his arrest on December 31, 2021.

25. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

26. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

27. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

28. That by reason of the foregoing, Plaintiff, Christon Holden has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

FACTUAL ALLEGATIONS

29. On or about December 31, 2021, at approximately 1:30 am, Mr. Holden was celebrating the beginning of the New Year inside his friend's apartment located on 143rd St, near St. Ann's Ave, Bronx New York.

30. Plaintiff left the apartment and entered the elevator alone and began to descend to the first floor exit.

31. As Mr. Holden was exiting the elevator he saw a uniform police officer who asked the Plaintiff to step aside.

32. Mr. Holden noticed several other uniform police officers inside the lobby of the building as he complied with the officer's order to step aside, away from the elevator.

33. As Mr. Holden attempted to step aside as ordered, two other police officers who were in the hallway approached Mr. Holden and grabbed Plaintiff's arms and began to twist his arms behind his back.

34. Mr. Holden began to scream at the officers and asked the officers "what's going on?"

35. The officers threatened Mr. Holden and began to assault the Plaintiff without reason or legal justification. Mr. Holden committed no crime nor did he threaten the officers at any point of the unlawful encounter with the Defendant officers.

36. That two officers were holding the Plaintiff on each side of his body when another police officer came and began to jump on Plaintiff's leg with the full weight of the officer's body causing Plaintiff pain and suffering without justification.

37. The officers started to grab and pull at Mr. Holden's body and legs for no apparent reason.

38. Mr. Holden's leg started to bend from the brute force inflicted by the officer.

39. The officers continued to hold down Plaintiff's legs as Plaintiff pleaded with the officers to stop.

40. The officer used his body to grab Claimant's legs causing Claimant's leg to snap. Mr. Holden was in excruciating pain from the officer's use of force.

41. Mr. Holden heard a noise coming from his leg which made a pop sound as the officer continued to grab and twist Plaintiff's leg in an attempt to break his leg for no apparent reason.

42. Mr. Holden pleaded with the officers to "get off my leg, get off my leg".

43. Mr. Holden was placed in handcuffs without explanation and placed in a patrol vehicle and driven to the 40th police precinct.

44. The officers asked Plaintiff if he needed medical attention. Mr. Holden informed the officers that he did in fact need medical attention for the apparent injuries to his leg.

45. Mr. Holden was placed in a jail cell without knowledge of why he was arrested and without medical attention.

46. One of the officers falsely informed Mr. Holden that he had an outstanding warrant from 2003 and gave Plaintiff Summons to appear in Criminal Court under **Summons Number 4448271073, Docket No.2022SX000429**. Mr. Holden was charged with disorderly conduct. The arresting officer failed to include his/her name on the Summons.

47. Mr. Holden was held in police custody for approximately seventeen (17) hours inside the 40th precinct and Central Bookings in Bronx Criminal Court.

48. The officers failed to seek medical treatment for Mr. Holden as Plaintiff was left in a jail cell in excruciating pain for hours due to the officers' unjustified use of force.

49. Plaintiff was subsequently taken to Central Booking on East 161st Bronx, New York. The officer who drove Mr. Holden to Central Booking observed Claimant's condition and told Mr. Holden that **"you look like you need medical attention."**

50. Mr. Holden was in such pain and agony that he was unable to put on his shoes and experienced difficulty walking due to the officers' use of force in grabbing and pulling Plaintiff's legs in a sadist manner.

51. Mr. Holden was unable to get inside the patrol van on his own and had to be assisted by one of the arresting officers.

52. Plaintiff was made to sit inside the patrol van for hours, his body throbbing in pain as the officers refused to provide medical treatment for the injuries the officers inflicted upon the Plaintiff during the course of Plaintiff's unreasonable seizure.

53. Officer Saltzmanizon prepared the NYPD Property Clerk Invoice Form No. 2001095786 on December 31, 2021 at 09:56.

54. The Property Invoice **failed to include the** name of the arresting officer and also failed to include the Summons number under which Plaintiff was arrested.

55. On January 19, 2022, the Hon. Criminal Court Judge, Seth Steed, Bronx County dismissed the outstanding Summons, 4448271073, and Docket No. 2022SX00421, as “Legally Insufficient”.

Physical Injuries: Medical Treatment

56. On January 1, 2022, Mr. Holden sought and received medical treatment for the injuries to his leg caused suffered by the police officers' wanton use of force.

57. Mr. Holden was treated at the Hackensack Meridian Health Center located at 30 Prospect Ave. Hackensack, New Jersey. Claimant was advised to seek additional treatment for the injury to his knee.

58. On January 20, 2022, Plaintiff sought and received medical treatment at the Lennox Hill Radiology Center located at 215 West 125th St. New York, New York where he continued to complain about the severe pain in his knee.

59. Doctor Mitchell Harrison diagnosed Mr. Holden's right knee as follows:

Menisci tear and LCL tear: Complex tear of the posterior horn of the medial meniscus with a predominantly oblique undersurface component. No meniscal extrusion or displaced meniscal fragment. Dr. Harrison referred Plaintiff to a specialist.

60. On February 26, 2022, Mr. Holden continued Mr. Holden sought additional treatment to his leg at the Hobeika Orthopedics located at 1090 Amsterdam Ave. New York, New York. Doctor Hobeika diagnoses indicated that Mr. Holden had sustained a right knee strain and was advised to avoid squatting or jumping.

61. Mr. Holden was advised to undergo physical therapy for the impairment to his leg.

Physical Therapy

62. On February 28, 2022, Mr. Holden sought and received medical treatment for the acute pain to his right knee from Mitchell Harrison, MDPC, located at 40 West 135th St. New York, New York. Dr. Harrison referred Mr. Holden to Theradynamics Rehabilitation that specializes in Physical Medicine & Rehabilitation located at 131 West 135th St. New York, New York.

63. Mr. Holden wore a knee brace for approximately two months to address the pain in his knee from the officers' assault on his body.

64. Mr. Holden continues to receive physical therapy and continues to suffer pain to his leg from the unprovoked wanton attack by the Defendant police officers.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFFCHRISTON HOLDEN AGAINST DEFENDANTS, P.O. SARA
SALTZMANIZON, P.O. KEY MATIA CASTILLO, AND JOHN DOES 1-3 FOR FALSE
ARREST AND FALSE IMPRISONMENT PURSUANT TO 42. U. S.C. SECTION 1983**

65. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 64", with the same force and effect as though more fully set forth at length herein.

66. That at all time herein mentioned Defendant Police Officers, Sara Saltzmanizon, Key Matia Castillo and John Does 1 through 3, falsely arrested and unreasonable seized Mr. Holden on December 31,2021, which resulted in Plaintiff's deprivation of liberty for approximately seventeen (17) hours in police custody.

67. The officers named herein are believed to be assigned to the 40th police precinct in the Bronx, New York.

68. The underlying officers seized Mr. Holden without probable to have reasonably believed that Plaintiff had committed criminal actively as Plaintiff was coming out an elevator inside the lobby of an apartment building located at 143rd St. Bronx, New York.

69. That the seizure of Christon Holden as set forth herein was patently unreasonable, and lacked conducted without any legal basis and without probable cause for Plaintiff's arrest.

70. Plaintiff was aware of his detention and seizure and did not consent to his confinement.

71. The underlying officers named above knew or should have known that they lacked probable cause to arrest, seized or charge Plaintiff with any crimes.

72. That the officers named herein, knowingly and willfully with the intent to deprive Plaintiff Holden of this Constitutional rights, fabricated charges against the Plaintiff and caused Plaintiff to be deprived of his liberty without due process of law.

73. Mr. Holden was wrongfully and unjustifiably held against his will and unreasonably seized, and deprived of his liberty and falsely charged.

74. The Defendants police officers acted in substantial abuse of their police power as New York City Police Officer under color of law.

75. That the officers knowingly, and intentionally deprived Mr. Holden of his right to be free from unreasonable seizure under the Fourth and Fourteenth Amendment to the Constitution of the United States, secured by 42 U.S.C Section 1983.

76. That during Plaintiff's unlawful seizure and arrest Mr. Holden was forcibly handcuffed, searched, assaulted, and subjected to humiliation and personal degradation, abuse, emotional distress, trauma, embarrassment, ridicule, and scorn, by the Defendants.

77. As a direct and proximate result of the officer's misconduct and abuse of authority described above, the Plaintiff Christon Holden sustained severe physical and emotional pain and suffering.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS, SARA
SALTZMANIZON, P.O. KEY MATIA CASTILLO, AND JOHN DOES 1-3 FOR
VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE AND
EXCESSIVE USE OF FORCE, UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS TO THE CONSTITUTION OF THE UNITED STATES PURSUANT
TO 42 U.S.C SECTION 1983**

78. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through "77," with the same force and effect as though more fully set forth at length herein.

79. Mr. Holden was brutally, and viciously attacked by a gang of police officers who surrounded and grabbed Plaintiff's legs and threw Plaintiff to the ground without cause or justification as Plaintiff was leaving a house party on the evening of December 31, 2022.

80. By reason of the foregoing, by grabbing, pulling and lifting and twisting Plaintiff's legs and body the officers named herein forcibly and unreasonably with the intent to harm and physically injure, did in fact engage in the unreasonable and excessive use of force against Plaintiff, Christon Holden..

81. That the officers' brutal and unconscionable use of force deprived Plaintiff Brijlall of his rights, remedies, privileges and immunities guaranteed to every citizen of the United States secured by 42 U.S.C Section 1983, including but not limited to rights guaranteed under the Fourth and Fourteenth Amendments to the Constitution of the United States.

82. That the officers acted within the scope of their employment and under color of law as New York City Police officers.

83. The Defendant police officers knowingly and willfully with intent to cause great pain and suffering to the Plaintiff, intentionally inflicted physical and emotional pain and suffering on Plaintiff Holden with deliberate indifference to Plaintiff's Constitutional rights.

84. The officers conduct was conducted with the specific intent to deprive Plaintiff of his Fourth and Fourteenth Amendments rights.

85. As a direct and proximate result of the officer's misconduct, and abuse of authority as set forth above, Plaintiff has sustained substantial pain and suffering.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS, SARA SALTZMANIZON, P.O. KEY MATIA CASTILLO, AND JOHN DOES 1-1 FOR ASSAULT UNDER THE COMMON LAW OF THE STATE OF NEW YORK.

86. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "85", with the same force and effect as though more fully set forth at length herein.

87. That the Defendants, their agents, servants and /or employees, without cause or justification, or the consent of the plaintiff, intentionally placed the Plaintiff in imminent fear of physical harm by surrounding Plaintiff and blocking his exit out of the lobby of an apartment building without legal justification set forth and described more fully within the preceding paragraphs.

88. Mr. Holden was caused to fear for his safety and for his life.

89. That by reason of the foregoing the Plaintiff has been unlawfully injured and seeks compensation against the Defendant officers for inflicting unnecessary pain, suffering, physical and emotional distress.

90. That the Defendants' conduct including their threats and intimidation towards Plaintiff Holden were intentional.

91. That the Defendant officers intentionally placed Plaintiff in apprehension of fear and imminent harm, and offensive contact by the Defendant officers' unlawful, and unprivileged

threat of force against the Plaintiff causing severe emotional injuries to the Plaintiff, for which Plaintiff now seeks compensation.

92. That Plaintiff's apprehension of imminent harm was reasonable due to Defendant police officers' offensive actions against the Plaintiff.

93. The Defendant police officers acted intentionally in placing Plaintiff in reasonable fear of an imminent battery.

94. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered humiliation, degradation, embarrassment pain, suffering, and mental anguish.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST THE DEFENDANTS, SARA SALTZMANIZON, P.O. KEY MATIA CASTILLO, AND JOHN DOES 1-3 FOR BATTERY PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK.

95. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "94" with the same force and effect as though more fully set forth at length herein.

96. That by reason of the foregoing and by Defendants' actions of grabbing Mr. Holden around his body and twisting his leg in an attempt to seize the Plaintiff for no logical reason and without legal justification, Plaintiff was physically injured and sought and received medical treatment for the pain in his knees and legs caused by the Defendants as police officers in the New York City Police Department.

97. That the officers acted in their official capacity as New York City Police officers who acted within the scope of their employment and as such, committed a willful, unlawful, unwarranted and intentional battery upon Plaintiff, Christon Holden.

98. That by reason of the foregoing the officers committed a willful, unlawful, unwarranted and intentional battery upon the Plaintiff.

99. That as a result of the foregoing battery on the part of the Defendants, the Plaintiff was caused to suffer severe physical and emotional injuries.

100. That Plaintiff has suffered and will continue to suffer agony in body, and mind.

101. That based on the foregoing unreasonable actions of the Defendants, Plaintiff has been damaged and is hereby seeking compensation for his emotional pain and suffering

102. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained damages alleged herein.

**AS AND FOR AN FIFTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
FOR RESPONDEAT SUPERIOR**

103. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “102”, with the same force and effect as though more fully set forth at length herein.

104. That the City of New York hired and supervised Defendants, Sara Saltzmanizon, Key Matia Castillo and John Does 1 through 3, who seized the Plaintiff and engaged in the assault, battery and unlawful willful and intentional use of force against the Plaintiff as set forth herein without legal justification.

105. That the Defendants committed the wrongs stated herein without probable cause, all done while acting under color of law and within the scope of their duties as employees of the City of New York and the New York City Police Department.

106. As a result, the City of New is liable for the unlawful acts of their employees, police officers, Sara Saltzmanizon, Key Matia Castillo and John Does 1 through 3, and their subordinates, under the legally recognized doctrine of Respondeat Superior.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDENTS POLICE OFFICERS SARA SALTZMANIZON, P.O. KEY MATIA CASTILLO, AND JOHN DOES 1-3 FOR INTENTIONAL INFLICTION OF EMOTIONAL STRESS UNDER THE COMMON LAW OF THE STATE OF NEW YORK.

107. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “106” with the same force and effect as though more fully set forth at length herein.

108. That the Defendants police officers, agents, servants and/or employees engaged in actions intended to inflict emotional trauma on the Plaintiff,

109. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants’ unlawful and reckless actions as more fully described herein.

110. Mr. Holden’s claim for the Intentional Infliction of Emotional Distress was caused by the Defendants unlawful conduct described in the above paragraphs who intentionally and without reason, privilege or probable cause, immediately surrounded Mr. Holden as he was getting off an elevator and attempting to exit a building and was grabbed by the named officers who seized the Plaintiff and inflicted punishment upon Plaintiff’s body and legs without cause to do so.

111. That the officers caused Plaintiff to seek medical treatment for injuries sustained by the officer’s unwarranted conduct.

112. That the misconduct exhibited by officers, Sara Saltzmanizon, Key Matia Castillo and John Does 1 through 3, was extreme and outrageous, and intended to cause severe emotional distress.

113. That Mr. Holden continues to seek medical treatment for the injuries inflicted upon him by the Defendants.

114. That the officers' misconduct was extreme and outrageous in degree and exceeded the bounds of decency expected in a civilized society.

115. The acts committed against the Plaintiff by the defendant police officers were intended to cause the Plaintiff extreme physical damage to his mind and body.

116. As a direct and proximate result of the misconduct and abuse of authority by the Defendants, Plaintiff has been injured and has sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully request judgment against the Defendants as follows,

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to Plaintiff in an amount that would punish the individual Defendants for their willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

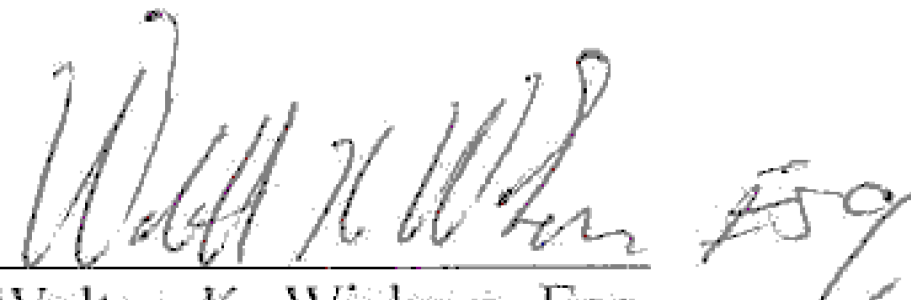
C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: October 12, 2022

Bronx, New York

By 
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SUPREME COURT OF THE STATE OF NEW YORK
 COUNTY OF BRONX

X

CHRISTON HOLDEN

Plaintiff,

AFFIRMATION

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
 P.O. SARA SALTZMANIZON, TAX REGISTRATION NO. 971660,
 IN HER INDIVIDUAL CAPACITY, P.O. KEY MATIA CASTILLO,
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 POLICE OFFICERS WHOSE NAMES ARE CURRENTLY UNKNOWN.

Defendants.

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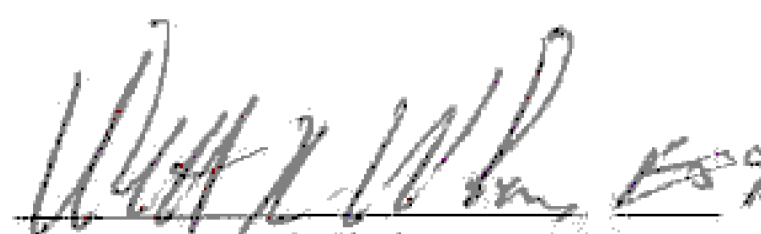
I, Welton K. Wisham, Esq. attorney duly admitted to practice before the Courts of the State
 of New York, affirm the following upon information and belief to be true under penalties of
 perjury: that, I am the attorney of record for the Plaintiffs, Christon Holden, and that,

That I have read the annexed Summons and Complaint and know the contents hereof
 and the same are true to my knowledge, except those matters therein which are stated to be
 alleged on information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, are based upon
 information contained within my case file and the investigation and conversation held with the
 Plaintiff.

The reason I make this affirmation instead of the Plaintiff is because the Plaintiff reside
 in a county outside that which this affiant maintains an office.

Dated: October 12, 2022
Bronx, York, New York

By 
Welton K. Wisham, Esq.
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